

Manoj Kumar Singh v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 26 February 2019 · WRIT - A No. 3095 of 2019 · **Writ dismissed; adequate Supply Code remedy for bill correction.**

HEADNOTE

The Allahabad High Court refused to quash a consumer electricity bill in writ jurisdiction, holding that an adequate remedy under the U.P. Electricity Supply Code, 2005, was available for correction of the bill.

FACTUAL SUMMARY

Manoj Kumar Singh, occupying Flat No. 501/4, Tower No. 5 at the Super Speciality Post Graduate Institute and Paediatric Hospital, Sector 30, Noida, petitioned the Allahabad High Court against the State of Uttar Pradesh and two others for certiorari to quash the December 2018 electricity bill dated 15 January 2019 for that residence. Counsel for the petitioner was heard. The Court did not examine whether the bill was correctly computed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5.14

bill-correction-alternate-remedy

HOLDING

Where an adequate remedy under the U.P. Electricity Supply Code, 2005, is available for correction of an electricity bill, the High Court will not invoke extra-ordinary writ jurisdiction to quash the bill; the writ petition is dismissed. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy The Allahabad High Court refused to quash a consumer electricity bill in writ jurisdiction, holding that an adequate remedy under the U.P. Electricity Supply Code, 2005, was available for correction of the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DECEMBER 2018 ELECTRICITY BILL DATED 15.1.2019

¶ 1